

26PR00462 Matter of the Mark J. Burris Trust

County: sonoma

Division: Probate

Hearing date: 2026-06-18

Motion: Petition for: (1) Removal of Successor Trustee; (2) Accounting; (3) Breach of Trust; (4) Invalidation of Transfer-on-Death Beneficiary Designation; (5) Imposition of Constructive Trust; (6) Breach of Fiduciary Duty; (7) Disinheritance for Abuse of Dependent Adult; and (8) Declaratory Relief

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Tentative Ruling: This matter is CONTINUED to October 2, 2026 at 9:30 a.m. in Department 12 to allow the petitioner an opportunity to correct the defects noted below and in the probate examiner notes posted May 6, 2026.

Use of the DE-115 notice of hearing form is mandatory in the context of California Probate Code ("Prob C") §850 petitions. The petitioner has used the incorrect notice of hearing form here, the DE-120 form.

The notice of hearing does not include a description of the subject property, as required by Prob C §851(c)(1).

The asset at issue is an Edward Jones account. However, Edward Jones, the entity in possession of the account, has not been served as required by Prob C §851(a)(2). Petitioner should note that Prob C §851(a) requires service of the notice of hearing and a copy of the petition in the manner provided by California Code of Civil Procedure §413.10 et seq. (i.e. in the manner of a summons.)

There is no proof of service to respondents Michael Gerald Burris and Sharon Burris.

All trust beneficiaries are entitled to notice of this proceeding pursuant to California Probate Code §851, but not all beneficiaries named in the trust have been served.